

25STCV20266 25STCV20266

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Case Number: 25STCV20266 Hearing Date: August 18, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

ARSEN KAZANCHIAN,

Plaintiff,

vs.

IMMERSIVE HUB, INC, et al.,

Defendants.

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CASE NO.: 25STCV20266

[TENTATIVE] ORDER SUSTAINING DEMURRERS

Dept. 506

8:30 a.m.

August 18, 2026

On

October 30, 2025, Plaintiff Arsen Kazanchian filed a first amended complaint ("FAC") against Defendants Immersive Hub Inc. ("Immersive"), M&M at Montebello LLC ("M&M"), and others. The FAC alleges (1) premises liability, (2) general negligence, (3) negligent infliction of emotional distress ("NIED"), and (4) negligent hiring and supervision.

On

December 22, 2025, Immersive filed a demurrer to the third and fourth causes of action.

On

February 13, 2026, M&M filed a demurrer to all causes of action.

DISCUSSION

A

demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015)

236 Cal.App.4th 1401, 1406.) “Because a demurrer challenges defects on the face of the complaint, it can only refer to matters outside the pleading that are subject to judicial notice.” (Arce ex rel. Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 556.) A special demurrer for uncertainty under Code of Civil Procedure section 430.10, subdivision (f) is disfavored and will only be sustained where the pleading is so bad that defendant or plaintiff cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Khouri v. Maly’s of Calif., Inc. (1993) 14 Cal.App.4th 612, 616 (Khouri).)

A. The First and Second Causes of Action

Lack Sufficient Facts.

A

cause of action for negligence requires (1) a legal duty owed to the plaintiff to use due care, (2) breach of that duty, (3) causation, and (4) damage to the plaintiff. (County of Santa Clara v. Atlantic Richfield

Co. (2006) 137 Cal. App. 4th 292, 318.)

The elements of a negligence claim and a premises liability claim are the same. (Kesner v. Superior Court (2016)

1 Cal.5th 1132, 1158.)

M&M

argues that the FAC is “impermissibly uncertain and ambiguous” because “Plaintiff does not specify the role of Responding Defendant and any alleged negligent actions or omissions to act, thus Responding Defendant has inadequate notice of Plaintiff’s claims and is unable to appropriately respond.”

(M&M Demurrer at pp. 5-6.) M&M

also argues that there are no facts about how the presence of wood dividers relate to Plaintiff’s claimed injuries. (Id. at p. 7.)

Plaintiff

alleges that all Defendants operated Bubble World Los Angeles, where Plaintiff was injured by a “bubble jumper.” (FAC ¶¶ 14-17.) Plaintiff attempted to jump on the “bubble jumper” but fell “due to the bubble jumper being deflated and failing to rebound properly to propel Plaintiff into the air.” (FAC ¶

19.) All Defendants “failed to exercise reasonable care by negligently, carelessly, and/or recklessly owning, operating, occupying, managing, and controlling said SUBJECT PROPERTY, including but not limited to, permitting

the wood dividers to be maintained and used on the SUBJECT PROPERTY.” (FAC ¶ 24.)

All Defendants also “negligently, carelessly and wrongfully owned, controlled, operated, managed, constructed, maintained, repaired, designed, evaluated, built, oversaw, patrolled and supervised the SUBJECT PROPERTY.” (FAC ¶ 30.)

As pleaded, the FAC does not state sufficient facts, rather than conclusions, for M&M to reasonably determine what issues must be admitted or denied. (See Khoury, supra, 14 Cal.App.4th at p. 616.)

Additionally,

Plaintiff alleges that all Defendants “were/are the agents, servants, employees, successors-in-interest and/or joint venturers of their co-defendants and were, as such, acting within the purpose, course, scope and authority of said agency, employment, successor-in-interest and/or joint venture and that each and every DEFENDANT as aforesaid was acting as a principle and was negligent in the selection and hiring and retention of each and every DEFENDANT and DOE DEFENDANTS as an agent, employee, successor-in-interest and/or joint ventures.”

(FAC ¶ 16.) Although Plaintiff need

not allege specific facts to support an alter ego theory when the Defendants may be assumed to possess superior facts, he still must allege some facts, not just conclusions, demonstrating unity of interest.

(See Rutherford Holdings, LLC v. Plaza Del Rey (2014) 223 Cal.App.4th 221, 236; First Western Bank & Trust Co. v. Bookasta (1968) 267 Cal.App.2d 910, 915-916.)

The

demurrer to the first and second causes of action is sustained.

B. Plaintiff Agrees to Dismiss the Third
Cause of Action.

“[T]here

is no independent tort of negligent infliction of emotional distress. [Citation.]

The tort is negligence, a cause of action in which a duty to the plaintiff is an essential element. [Citations.] That duty may be imposed by law, be assumed by the defendant, or exist by virtue of a special relationship. [Citation.]”

(Potter v. Firestone Tire & Rubber Co. (1993) 6 Cal.4th 965, 984-985.) “[U]nless the defendant has assumed a duty to plaintiff in which the emotional condition of the plaintiff is an object, recovery is available only if the emotional distress arises out of the defendant’s breach of some other legal duty and the emotional distress is proximately caused by that breach of duty. (Id. at p. 985.)

Plaintiff

indicates that he “agreed to stipulate to strike the Third Cause of Action for Negligent Infliction of Emotional Distress.” (Opposition to Immersive at p. 5.) He “does not oppose the demurrer as to the third cause of action and is prepared to stipulate to its removal from the First Amended Complaint.” (Opposition to M&M at p. 8.)

The

demurrer to the third cause of action is sustained.

C. The Fourth Cause of Action Lacks Sufficient Facts.

An

employer may be liable to a third person for negligent hiring or retention when the employer hired an employee who was incompetent or unfit, the employer had reason to believe an undue risk of harm would exist because of the employment, and harm occurred. (Federico v. Superior Court (1997) 59 Cal. App. 4th 1207, 1213-1214.)

Plaintiff

alleges that Defendants “had a mandatory duty of care to properly hire, train, retain, supervise and discipline its employees so as to avoid unreasonable harm to citizens,” and they “breached a duty of care to law-abiding citizens and failed to adequately train employees.” (FAC ¶¶ 42-43.) There are no facts about Defendants’ knowledge of any employee’s unfitness. There are also no facts about what any individual employee did or did not do. The Court does not consider Plaintiff’s unauthenticated exhibits (see Opposition to Immersive at pp. 6) and must review only the FAC’s allegations.

The

demurrer to the fourth cause of action is sustained.

CONCLUSION

M&M

at Montebello LLC’s demurrer to the first, second, and fourth causes of action is SUSTAINED with 30 days’ leave to amend.

Immersive

Hub Inc.'s demurrer to the fourth cause of action is SUSTAINED with 30 days' leave to amend.

M&M

at Montebello LLC's demurrer and Immersive Hub Inc.'s demurrer to the third cause of action are SUSTAINED without leave to amend.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 18th day of August 2026

Hon. Thomas D. Long

Judge of the Superior
Court